

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 91-03 Unlawful Flight: Definitions and Penalties

WHEREAS, the Chickasaw Tribal Legislature is responsible for making decisions pertaining to the acquisition, leasing, disposition and management of tribal property subject to federal law and for enacting rules and regulations pertaining to the Chickasaw Nation, and

WHEREAS, Governor Bill Anoatubby, chief executive officer of the tribe, or his designee, is authorized to enter into, negotiate, modify, amend and sign grants, contracts and other agreements on behalf of the Chickasaw Nation, and

WHEREAS, the Muskogee Area Office of the Bureau of Indian Affairs has established a Court of Indian Offenses to provide for misdemeanor jurisdiction over Indian crimes committed in Indian Country in eastern Oklahoma, and

WHEREAS, there have been reports that Indians suspected of having committed crimes outside of Indian Country within the jurisdiction of the State of Oklahoma have sought asylum on Indian Country lands in order to prevent Oklahoma state officials from bringing them to justice, and

WHEREAS, a judge of a Court of Indian Offenses has the authority to issue a warrant to apprehend an Indian suspected of committing a violation of an approved tribal ordinance or law under the authority of 25 CFR 11.14 and 11.74, and

WHEREAS, the Chickasaw Nation will not tolerate the use of lands within its jurisdiction as a sanctuary from legitimate prosecution of crimes committed outside its jurisdiction,

NOW, THEREFORE, BE IT RESOLVED, that whomever moves or travels to Indian Country lands within the jurisdiction of the Chickasaw Nation with intent to either (1) avoid prosecution, or custody, or confinement after conviction, under the laws of the place from which he or she flees, for a crime which is a felony under the laws of the place from which the fugitive flees, or (2) avoid giving testimony which does not abrogate one's United States Constitutional rights against self-incrimination in any criminal proceedings in such place in which a felony is charged, or (3) avoid service of, or contempt proceedings for alleged disobedience of, or lawful process requiring attendance and the giving of testimony or the production of documentary evidence before a court of the place from which he or she flees, shall be guilty of the tribal offense of Unlawful Flight and shall be imprisoned for not more than one year and/or fined not more than \$5,000.

BE IT FURTHER RESOLVED, that upon a showing of probable cause, a judge of the Court of Indian Offenses is authorized to issue a warrant to apprehend and arrest a person suspected of committing this offense, and to deliver that person to the authorities in the jurisdiction where he or she is subject to arrest or lawful process, either before or after prosecution for the tribal offense of Unlawful Flight.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Sulphur, Oklahoma, on December 21, 1990, by a vote of 11 ayes, 0 nays, and 0 abstentions.

David R. Stead **PASSED**
Chairperson
Chickasaw Tribal Legislature

Bob Martin
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby Date: DEC 21 1990
Bill Anoatubby, Governor
The Chickasaw Nation